

		California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. On April 17, 2026, the Court authorized service through posting and mailing. The Proof of Service from the posting and mailing shows that service was completed by a layperson, Lynn Paris, not a registered process server. There is no rebuttable presumption as to a lay person. Defendant alleges to have doorbell camera evidence showing that attempts at service were not made on the dates/times as indicated in the proof of service. If Defendant has video evidence to rebut the presumption as to the non-service declaration, the Court will consider it. Additionally, as there is no presumption of proof of service (ROA 15), the Plaintiff must produce the person who provided service at the hearing. Additionally, as indicated by the Clerk's Rejection Notice (ROA 16), Plaintiff's Request for Default Judgment was premature when filed on 5/12/2026. Plaintiff and Defendant must provide evidence of service or lack of service at the hearing on 5/20/2026 at 8:30 AM. Defendant is to have a device in which to play a door camera video at the Court hearing.
11	30-2026-01554359-CL-UD-CJC Korth Family Limited Partnership vs. Zarate	The Court has read and considered the Plaintiff's Motions to Deem Request for Admissions, Set One, Admitted (ROA 28). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendants, be deemed admitted. The Court orders the Defendants, Karen Zarate and Jose Zarate, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be made payable to "Kimball, Tirey, & St. John, LLP" within 5 business days, and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide notice of this Court's order.
12	30-2026-01556541-CL-UD-CJC Western National Securities vs. Noble	The Court has read and considered the Plaintiff's Motions to Deem Request for Admissions, Set One, Admitted (ROA 41). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant, be deemed admitted. The Court orders the Defendant, Brezanna E. Noble, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be